

Sixthly, if a writ in reall action be abated by judgement in the court of common pleas, and in a writ of error the judgement is reversed in this court, and the writ is adjudged good, this court shall proceed upon this writ, and is not restrained by Magna Carta, *ubi supra, ne curia domini regis deficeret in iustitia exhibenda.*

This court may hold plea in assise of *novel disseisin* without any patent, for it is *querela* and not *placitum*, and so not within these words *commata placita*, as it hath been expounded and warranted by continuall experience.

A *scire fac'* to repeal a patent of the king may be brought in this court. And where Fleta saith, *Nisi coram semetipso et concilio suo, vel auditoribus specialibus falsa judicia ac errores justiciariorum revertuntur*: It is to be known that all the common law errors in the court of exchequer (being the proper court of the king for his revenue and profit) were examinable before commissioners appointed by the kings writ under his great seal, which Fleta here calleth *auditores speciales*. But now by the statute of 31 E. 3. the chancelour and treasurer taking to them the justices and other sage persons, such as to them seemeth to be taken, shall examine the errors in the exchequer, &c.

^a In ancient time, when pleas were holden in parliament, when the parties descended to issue, the record was adjourned into the kings bench to be tried there.

^b See the statute of W. 1. against preposterous hearings in this court, and the exposition of the same in the second part of the Institutes.

^c By the statute of *Artic' super Cart.* the chancelour and the justices of the kings bench were to follow the court: but notwithstanding both the chancery and the kings bench were at this time settled courts during the severall terms * of the year, as by infinite records both before and after this statute doth appear. So as at this time they did not attend in the kings court, but when they were called yet were accounted as parcell of the kings household as long as they followed the court; but this cumbersome attendance wholly ceased in the reign of E. 3. and yet the lord chancelour would have had his purveyance, as if he had continued still as one of the household, untill he and all others, but those of the kings, queens, or princes household only, were restrained by act of parliament. 34 E. 3. cap. 2.

times and termes the court of chancery did sit.

3 H. 7. 22.
14 H. 7. 14.
23 E. 3. 46.
11 H. 4. 49. in
nativo habenda.

F. N. B. 177.
30 Aff. 35. Aff.
de mord.

3 H. 4. 7.

See more hereof
in the chapter of
the Exchequer.
31 E. 3. cap. 12.

^a Rot. par.
18 E. 3. 28. 97.
Placit. int. Jo.
de novo Borgo &
Regman, &c.

^b W. 1. cap. 14.
Against prepos-
terous hearings.

^c Art. sup. cart.
28 E. 3. cap. 5.
Glan. temp.
H. 2. lib. 2. ca. 6.
& lib. 17. ca. 2.
*Coram iusticiis
domini regis in
banco sedentibus.
Vid. ad iudicatu
coram rege in
every terme,
from 1 E. 2. dur-
ing all his reign
in every severall
term in theyears.
And in all those*
34 E. 3. ca. 2.

* [73]

Also upon perusall of the records in the reign of H. 3. from the beginning of his reign untill the ending of it, this court sat in the term time where the other courts of justice did sit. And the pleas were stiled to be holden *coram rege* as to this day they are: and this appeareth by Fitzh. Abridgement, in the titles of Corone, of Brief, of Wast, &c. and by Bracton who in many places voucheth judgments in the reign of H. 3. in terms *coram rege*. And this appeareth also in elder times: but hereof thus much shall suffice to prove, that at the making of the said act of 28 E. 1. and long before, this court in term times sat with the kings other courts, and specially for pleas of the crown, &c. and that the said act

And so did the
chancery both of
them being to
some purposes
but one court as
it appeareth in
the chapter of
the court of
chancery.

is to be intended, that the chancelour and the judges of this court should attend the king and follow the court when they were required:

9 El. Dier 187.

27 Aff. p. 1.

9 E. 4. 18.

4 H. 7. 18.

14 H. 7. 21.

li. 9. fo. 118. a

& b.

Segnior Sanchez case.

17 E. 3. 13. 2.

Jib. 4. fo. 57. in the Sadlers case.

Pl. Com. 262.

21 Aff. 12.

27 aff. 1. 28 aff.

52. 21 H. 7. 29.

b Pasch. 12 E. 3.

coram rege,

Ro. 99. Chicheff.

W. 1. cap. 3.

lib. 9. fo. 118.

ubi supra.

Hil. 1 Jac. Sir

Walter Raleighs

case, &c.

Pl. Com. fo 388.

count de Leic'

case acc'.

22 E. 3. 6. b.

24 E. 3. 73.

29 aff. 52.

Stanf. pl. cor. 15.

6 H. 8. cap. 6.

It extendeth on-

ly to felonies

and murders.

[74]

See before cap.

Parliam. pag. 21.

when a writ of

error is sued of a

judgment, *coram*

rege, they pro-

ceed *super tenorem*

recordi, and the

record it self

remaineth in this

court.

2 H. 4. cap. 10.

It is truly said that the justices *de banco regis* have supream authority, the king himself sitting there as the law intends. They be more then justices in eire.

The justices in this court are the sovereign justices of oier and terminer, gaol-delivery, conservators of the peace, &c. in the realm. See the books in the margent, you shall find excellent matter of learning concerning the supream jurisdiction of this court.

In this court the kings of this realm have sit in the high bench, and the judges of that court on the lower bench at his feet; but judicature only belongeth to the judges of that court, and in his presence they answer all motions, &c.

The justices of this court are the sovereign coroners of the land, and therefore where the sherif and coroners may receive appeals by bill, *à fortiori* the justices of this court may do it.

So high is the authority of this court, that when it comes and sits in any county, the justices of eire, of oier and terminer, gaol-delivery, & they which have conufance, &c. doe cease without any writing to them. But if any indictment of treason or felony in a foreign county be removed before certain commissioners of oier and terminer in the county where this court sits, yet they may proceed, because this court (for that this indictment was not removed before them) cannot proceed for that offence. But if an indictment be taken in Midd. in the vacation, and after this court sit in the next term in the same county (if this court be adjourned) then may speciall commissioners of oier and terminer, &c. in the interim proceed upon that indictment, but the more usuall way is by speciall commission. And all this was resolved by all the judges of England at Winchester term, *anno 1 Jacobi regis*, in the case of Sir Everard Digby and others: and so had it been resolved, Mich. 25 & 26 Eliz. in the case of Arden and Somerville, for this kind of special commission of oier and terminer: and herewith agreeth Pl. Com. in the earl of Leic' case, *anno 1 Mar. reginae*.

And so supream is the jurisdiction of this court, that if any record be removed into this court, it cannot (being as it were in his centre) be remaunded back, unlesse it be by act of parliament. And this appeareth by the judgment of the parliament in *anno 6 H. 8.* but by the authority of that act indictments of felonies and murders removed into the kings bench may by the justices of that court be remaunded, and this court may send down as well the bodies of all felons and murderers, as their indictments into the counties where the same murders or felonies were committed or done, &c. in such manner, &c. as if the indictments had not been brought into the kings bench. But the justices of the kings bench of their own authority may grant a *nisi prius* in case of treason, felony, and other pleas: for there they send but the transcript of the record, and not the record itself, as shall be said in the chapter of Justices of *nisi prius*. But if the justices of the kings bench doe perceive that any indictment is to be removed into that court by practise or for delay, the court may refuse to receive the same, before it be entred of record, and remand the same back again for justice to be done.

By the statute of 2 H. 4. the clerk of the crown of this court, if

four score